COBALT MANAGED HOSTING AGREEMENT

This Agreement is made between Cobalt Hosting BV (the "Vendor") and Ardent Motors plc (the "Customer").

1. Definitions and Interpretation

1.1 "Services" means the services described in Schedule 1 to this Agreement.

1.2 "Confidential Information" means all non-public information disclosed by one party to the other.

1.3 References to clauses and Schedules are to the clauses of and Schedules to this Agreement.

2. Term and Renewal

2.1 This Agreement commences on 1 January 2026 and continues for an initial term of 48 months.

2.2 It renews automatically for successive periods of twelve months unless either party gives 120 days' written notice of non-renewal.

3. Fees and Payment

3.1 The Customer shall pay each undisputed invoice within 60 days of receipt.

3.2 Overdue amounts accrue interest at 8% per annum from the due date until payment.

4. Service Levels

4.1 The Vendor shall ensure that the Services are available at least 99.95% of the time in each calendar month.

4.2 If availability falls below this level the Customer is entitled to a service credit of 15% of the monthly fee for each full percentage point of shortfall.

5. Data Protection

5.1 The Vendor shall process Personal Data only on the Customer's documented instructions and in accordance with Article 28 of the GDPR.

5.2 The Vendor shall notify the Customer of any personal data breach within 24 hours of becoming aware of it.

6. Information Security

6.1 The Vendor shall maintain certification to ISO/IEC 27001:2013 and ISO/IEC 27017 throughout the term.

6.2 The Vendor shall commission an independent penetration test of the Services every quarter and share a summary of the findings.

7. Intellectual Property

7.1 Each party retains ownership of the intellectual property it owned before the Effective Date.

7.2 The Customer grants the Vendor a licence to host the Customer's applications for the term only.

8. Limitation of Liability

8.1 Subject to clause 8.3, the total aggregate liability of either party under this Agreement shall not exceed EUR 5,000,000.

8.2 Neither party is liable for indirect or consequential loss.

8.3 Nothing in this Agreement limits liability for death or personal injury caused by negligence, or for fraud.

9. Termination

9.1 Either party may terminate this Agreement by written notice if the other commits a material breach that is not remedied within 20 days of notice of the breach.

9.2 The Customer may terminate this Agreement for convenience on 270 days' written notice to the Vendor.

9.3 On termination the Vendor shall return or delete the Customer's data within 30 days.

10. Confidentiality

10.1 Each party shall keep the other's Confidential Information secret and use it only to perform this Agreement.

10.2 These obligations continue for 7 years after termination or expiry.

11. Force Majeure

11.1 Neither party is liable for delay caused by events beyond its reasonable control, including flood, fire, war and failure of public utilities.

11.2 If the event continues for more than 30 days either party may terminate this Agreement by written notice.

12. Governing Law and Jurisdiction

12.1 This Agreement is governed by the laws of the Netherlands.

12.2 The courts of Amsterdam have exclusive jurisdiction over any dispute arising from this Agreement.

13. Anti-Bribery

13.1 Each party shall comply with the UK Bribery Act 2010 and the US Foreign Corrupt Practices Act (FCPA).

13.2 Either party may suspend performance immediately if the other is credibly accused of bribery.